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JUDGMENT SHEET

LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

Writ Petition No.52251 of 2022

Tariq Mehmood Aamir Vs Government of the Punjab

J U D G M E N T

Date of Hearing:	15.05.2025
Petitioner by:	Ch. Imran Arshad Naro, Advocate. Mr. Zulfiqar Ali Dhudhi, Advocate.
Petitioner in connected W.P. No.3447 of 2023 by:	Mr. Safdar Hussain Tarar, Advocate.
Respondent by:	Hafiz Muhammad Latif Khawaja, Additional Advocate General. along with Mr. Adnan Ali, Law Officer.

Anwaar Hussain, J. Through this single judgment, the present as well as the connected constitutional petition bearing W.P. No. 3447 of 2023 are being simultaneously decided, as a common question of law is involved.

2. The petitioners in both cases were initially inducted into the prosecution service, on contract basis, in the year 2007. Subsequently, their services along with similarly placed persons were terminated, triggering the filing of multiple constitutional petitions, which were adjudicated upon by a learned Division Bench of this Court. It was held that the petitioners and similarly placed persons were entitled to the benefit of the notification dated 10.11.2010, which pertains to **‘the regular appointment of contract employees in BS-16 and above.** The judgment of the learned Division Bench dated 29.09.2016 was challenged by the Government through civil petitions for leave to appeal, which were dismissed by the Supreme Court, *vide* judgment dated 27.02.2019. Thereafter, a contempt petition bearing Crl. Org. No. 7-L of 2019 was filed, in which the Secretary, Punjab Public Service

Commission (“PPSC”) appeared in person and assured the Supreme Court that once a reference was received from the Prosecution Department, the cases of the petitioners and similarly placed persons would be considered for regularization in the light of the notification dated 10.11.2010. Consequently, the reference was initiated, and the petitioners, along with other similarly placed individuals, were appointed on regular basis. The petitioner in the present case was issued an appointment order on 11.03.2022, whereas the petitioner in the connected case was appointed on 08.04.2022, however, their appointments were treated as fresh, prompting the petitioners to approach the respondent/Secretary, Prosecution Department, Government of Punjab, through applications seeking regularization of their services w.e.f. 10.11.2010 in light of judgment dated 29.09.2016 passed by the learned Division Bench. The petitioners now seek a direction for decision on the said applications accordingly, claiming regularization from the date of the notification dated 10.11.2010.

3. Learned counsel for the petitioners submit that services of the petitioners were to be regularized through an examination to be conducted by the PPSC. However, instead of regularizing their services, the respondent has appointed them on probationary basis, without properly appreciating the core legal issue. Add that the orders of appointment must be modified and the respondent be directed to regularize their services w.e.f. the date of the notification dated 10.11.2010 and their seniority and emoluments be calculated accordingly. Reliance is placed on the case titled *Ikram Bari and others v. National Bank of Pakistan through its President & others* (PLJ 2005 SC 435).

4. Conversely, the learned Law Officer has opposed the petitions, contending that once the petitioners have been appointed on regular basis, such appointment constitutes a fresh one, and the

petitioners are not entitled to any retrospective benefits or regularization w.e.f. 10.11.2010.

5. Arguments heard. Record perused.

6. The factual matrix of the case is not disputed. It is an admitted position that upon their termination, the petitioners and similarly placed persons were granted relief by the learned Division Bench of this Court in the terms that the petitioners were held entitled to the benefit of the notification dated 10.11.2010, and the findings were upheld by the Hon'ble Supreme Court of Pakistan. Thereafter, the petitioners were appointed as regular employees w.e.f. the date of their new appointments. Hence, the question before this Court is whether the date of regularization of the petitioners should be considered as 10.11.2010—the date of the notification.

7. The notification dated 10.11.2010 serves as a policy guideline for the prospective regularization of the contract employees. It does not confer an automatic or retrospective right to regularization. Rather, each case required evaluation based on specific criteria, including performance and the fulfillment of prescribed qualifications. The notification did not stipulate that regularization would be effective from the date of initial contract appointment or from the date of the notification. Instead, it provided a framework for considering the contract employees for regularization. Only upon regularization, the contract employees would enter the regular service stream anew, without retrospective benefits whereas case of *Ikram Bari supra* dealt with the rights of daily wagers employees of the National Bank of Pakistan. Hence, case of *Ikram Bari supra* is not applicable on account of distinguishable facts. In fact, case reported as *Province of Punjab through Secretary Livestock and Dairy Development Department, Government of the Punjab, Lahore and others v. Dr. Javed Iqbal*

and others (2021 SCMR 767) is relevant in which the notification came under scrutiny of the Supreme Court of Pakistan when in somewhat similar circumstances, contract employees of Livestock and Dairy Development Department of the Government of Punjab sought benefits under the same notification.

8. In case of Dr. Javed Iqbal *supra*, the contours of the notification were analyzed by the Supreme Court, while formulating the following legal question:

“The question before us is whether the date of regularization of contract employees is the date of their initial appointment on contract basis or the date of their regularization under the Regularization Policy dated 10.11.2010?”

While addressing the above quoted legal question, the Apex Court held as follows:

“7. ...It is underlined that contractual employees enjoy no vested right to regularization (see Contract Appointment Policy), much less to be regularized from any particular date. The benefit of regularization extended to them under the Regularization Policy is prospective in nature and there is no legal justification to give it retrospective application. Any such step would totally negate the purpose and significance of the Contract Appointment Policy and leave no distinction between a contractual and a regular employee. This has been the tenor of the jurisprudence evolved by this Court. Reference can be made to the judgment of a five-member Bench of this Court dated 29.01.2018, passed in Civil Review Petition No. 471/2015, and the unreported judgments dated 13.03.2010 passed in C.Ps. Nos. 318-L to 330-L of 2018 and dated 21.07.2020 passed in C.Ps. Nos. 194-L/2020, etc. It is also important to underline that the consistent governmental policies on regularization have finally manifested in the Punjab Regularization of Service Act, 2018, which specifically provides for regularization with immediate effect.”

(Emphasis supplied)

The Supreme Court’s interpretation in case of Dr. Javed Iqbal *supra* reinforces the understanding and the necessity of treating

regularization as a fresh appointment to maintain the integrity of the civil service system and protect the rights of the existing civil servants. It is imperative to observe that both regular and contractual employees are governed by two separate and distinct Legal Frameworks—Contractual appointments are governed by specific terms and conditions distinct from those applicable to the regular civil servants. Therefore, allowing the contract employees to claim seniority from the date of notification would infringe upon the rights of existing regular civil servants, disrupting established hierarchies and entitlements. Therefore, this Court is of the opinion that the date of the regularization cannot be the date of the regularization policy envisaged under the notification (i.e., 10.11.2010) as any such step would negate the purpose and significance of the Contract Appointment Policy and will leave no distinction between a contractual and a regular employee as held in the case of *Dr. Javed Iqbal supra* and direction cannot be issued to the respondents to decide the applications of the petitioners against the settled legal position.

9. In view of the above discussion, the present as well as connected petition are devoid of any merit, hence, **dismissed**. No order as to costs.

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting.

Judge